

25CHCV01966 25CHCV01966

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-13

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DEFENDANT

JASWINDER DHINSA'S DEMURRER TO COMPLAINT

Motion filed on April 22, 2026.

MOVING PARTY: Defendant Jaswinder Dhinsa

RESPONDING PARTY: None

NOTICE: OK.

RELIEF REQUESTED: Order sustaining demurrer to Plaintiff

Amir Edwards's Complaint.

RULING: Overruled as moot.

BACKGROUND

On June 9, 2025, Amir Edwards (Plaintiff) filed a Complaint against Defendants Jaswinder Dhinsa (Defendant Dhinsa), Clearview Real Estate Holdings LLC, and Does 1 through 10, asserting causes of action for intentional misrepresentation, negligent misrepresentation, abuse of process, civil

conspiracy, and intentional infliction of emotional distress. Defendant Dhinsa filed this demurrer on April 22, 2026, supported by the declaration of Bradley T. Weeks. Plaintiff filed the First Amended Complaint on May 6, 2026. No timely opposition nor reply was filed.

DISCUSSION

“A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” (Code Civ. Proc., § 472, subd. (a).) When plaintiff files an amended complaint after a demurrer is filed, but before it is decided, the demurrer must be overruled as moot. (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477.)

Here, Defendant Dhinsa demurs to Plaintiff’s original Complaint. Plaintiff filed the First Amended Complaint on May 6, 2026, after the demurrer was filed and before the July 13, 2026 hearing. The First Amended Complaint supersedes the original Complaint and is now the operative pleading. Defendant Dhinsa’s demurrer no longer challenges the operative pleading. The demurrer is moot.

CONCLUSION

Defendant Dhinsa’s demurrer to the Complaint is overruled as moot.